**UNITED STATES DISTRICT COURT**
**FOR THE SOUTHERN DISTRICT OF TEXAS**
**HOUSTON DIVISION**

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| MAYA DANGELAS, et al.,<br>Plaintiffs, | § | |
| v. | § | Civil Action No. 4:26-cv-04908 |
| CHICAGO CRYSTAL BALL, LLC (Idaho), et al.,<br>Defendants. | § | JUDGE CHARLES ESKRIDGE |

**DEFENDANT, CRISTIANO CALLEGARI'S MOTION TO DISMISS THE AMENDED COMPLAINT UNDER RULES 12(b)(1) AND 12(b)(6)**

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Defendant, Cristiano Callegari moves under Rule 12(b)(1) to dismiss all claims of Plaintiff, Maya Dangelas for lack of standing, and under Rule 12(b)(6), with specific denials under Rule 9(a)(2) and Rule 17(a)(1) to dismiss all claims against him in Plaintiffs' Amended Complaint (Dkt. 13) for failure to state a claim, and respectfully shows:

## I. INTRODUCTION

Plaintiff, Maya Dangelas and Defendant, Cristiano Callegari were formerly in a relationship (Decl. Callegari, Dkt. 3, ¶¶ 5-7). During the relationship, Callegari received many impressive gifts, including Chicago Crystal Ball's dance competition, purchased with funds from Angels Company. (*Id.*). The two are no longer together (*Id.*). Dangelas now wants the gift back and stylizes it as a business dispute (*Id.*). The Complaint and Amended Complaint struggle to shoehorn an informal gift with no expectation of repayment into a business venture based solely on alleged oral agreements lacking any specificity or evidence.

## II. NATURE AND STAGE OF THE PROCEEDING

Plaintiffs sued in the 125th Judicial District Court of Harris County, Texas. Defendants removed on diversity grounds (Dkt. 1). This Court denied Plaintiffs' application for a temporary restraining order (Dkt. 11). Plaintiffs filed an Amended Complaint on June 26, 2026 (Dkt. 13). Defendants, Francesco Flumiani, Chicago Crystal Ball, LLC (Idaho) and Chicago Crystal Ball, LLC (Florida) moved to dismiss under Rule 12(b)(6) on July 9, 2026 (Dkt. 21). That motion, and Plaintiffs' motion for a preliminary injunction (Dkt. 15), will be heard at the initial conference set for September 23, 2026 (Dkts. 33, 42, 45). Discovery is stayed pending that conference (Dkt. 45).

This motion is timely. Plaintiffs elected to complete service on Callegari by waiver, their request under Rule 4(d) was sent on July 10, 2026, and the undersigned executed and returned the waiver on Callegari's behalf on July 22, 2026, as reported to the Court without any objection from Plaintiffs on July 29, 2026 (Dkt. 35). Under Rule 4(d)(3), a defendant who timely returns a waiver need not serve an answer or Rule 12 motion until 60-days after the date the request was sent, which here would be September 8, 2026. In the alternative, Callegari requests any needed brief extension under Rule 6(b)(1).

## III. STATEMENT OF FACTS

The Amended Complaint pleads that on December 17, 2023, Cristiano Dance Company LLC and Flumiani purchased the assets of the original Chicago Crystal Ball LLC (an Arizona limited liability company with owners who are not named in this suit) under a written Asset Purchase Agreement, with Dangelas funding the $250,000 price (Dkt. 13, ¶¶ 16, 19, Dkt. 34-3). Plaintiffs allege that Flumiani and Callegari orally agreed that Angels Company "would own 100% of a newly formed Chicago Crystal Ball" (Dkt. 13, ¶ 20), that CCB Idaho was organized later in January 2024 and thereafter operated the dance competition, with revenues deposited in a Houston bank account opened for CCB Idaho (Dkt. 13, ¶¶ 21–24, 30). Plaintiff also alleged that the funds Dangelas furnished "were given to CCB" (Dkt. 13, ¶ 26) and that Defendants refused on demand to document Angels Company's claimed ownership or to account for revenues (Dkt. 13, ¶¶ 27–28). On these allegations Plaintiffs plead fraud and fraudulent inducement, statutory fraud, breach of contract, breach of fiduciary duty, and conversion and statutory theft, and seek damages in excess of $350,000 (Dkt. 13, ¶¶ 31–50).

## IV. STATEMENT OF THE ISSUES

1. Whether Dangelas has Article III standing when she has sworn that she owns no interest in Angels Company and that the funds sued for were not paid by her.
2. Whether Angels Company is shown to have authorized this suit, upon Callegari's specific denial under Rule 9(a)(2) and Rule 17(a)(1).
3. Whether the claims for injury to Chicago Crystal Ball fail to state a claim under Rule 12(b)(6) because they are derivative and may not be brought individually.
4. Whether any cause of action for fraud, fraudulent inducement, statutory fraud, breach of contract, breach of fiduciary duty, or conversion and statutory theft states a claim against Callegari.
5. Whether dismissal should be with prejudice because amendment would be futile.

## V. STANDARD OF REVIEW

A motion under Rule 12(b)(1) may contest subject matter jurisdiction. In a factual attack on subject matter jurisdiction, the Court may consider evidence outside the pleadings, including affidavits in the record, and "no presumption of truthfulness attaches to plaintiff's allegations, and the existence of disputed material facts will not preclude the trial court from evaluating for itself the merits of jurisdictional claims." *Williamson v. Tucker*, 645 F.2d 404, 412–13 (5th Cir. 1981). The plaintiff bears the burden of establishing jurisdiction which for Article III standing requires a concrete, particularized "injury in fact" to a legally protected interest of the plaintiff. *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560–61 (1992). A plaintiff "must assert his own legal rights and interests, and cannot rest his claim to relief on the legal rights or interests of third parties." *Warth v. Seldin*, 422 U.S. 490, 499 (1975).

Under Rule 12(b)(6), to survive dismissal, a complaint must plead "enough facts to state a claim to relief that is plausible on its face." *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 570 (2007). The Court accepts well pleaded facts as true. *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). However, Courts will not "strain to find inferences favorable to the plaintiffs." *Westfall v. Miller*, 77 F.3d 868, 870 (5th Cir. 1996). Nor do Courts "accept conclusory allegations, unwarranted deductions, or legal conclusions." *Nathenson v. Zonagen Inc.*, 267 F.3d 400, 406 (5th Cir. 2001).

Fraud must plead with particularity "the who, what, when, where, and how." *Dorsey v. Portfolio Equities, Inc.*, 540 F.3d 333, 339 (5th Cir. 2008). Dismissal for failure to plead fraud with particularity as required by Rule 9(b) is a dismissal on the pleadings for failure to state a claim. *Shushany v. Allwaste, Inc.*, 992 F.2d 517, 520 (5th Cir. 1993).

## VI. SUMMARY

"This is not a case where the plaintiff has pleaded too little, but where [s]he has pleaded too much and has refuted [her] own allegations by setting forth the evidence relied on to sustain them…The litigant may be defeated by [her] own evidence, the pleader by [her] own exhibits; the appellant has become enmeshed in [her] own prolixity." *Simmons*, 113 F.2d at 813. Indeed, this motion begins with a threshold defect based solely on Plaintiffs' own words. On July 2, 2026, Plaintiff, Maya Dangelas swore in a notarized affidavit filed in this Court that Angels Company, Inc. ("Angels Company") is "a company in which I own no interest," and that the $250,000 sued for "was paid by Angels Company, Inc. and not by me." (Dkt. 15-5, p. 1). The Amended Complaint pleads that Flumiani and Callegari agreed that Angels Company alone would own CCB, and that the funds went from Angels Company to CCB (Dkt. 13, ¶¶ 20, 26).

Dangelas is therefore neither promisee, nor owner, nor member, nor payor. She has no injury of her own and no standing.

Angels Company's claims fare no better, as the pleading identifies no officer, director, or agent of the company. The only person who has ever purported to act for Angels Company in this case is Dangelas, who verified the TRO application on its behalf (Dkt. 8), but she has since sworn away any interest in the company in the above cited, subsequent affidavit. And the counts pleading injury to CCB are derivative of Plaintiff's own theory, which is a failure to state a claim, not a defect in this Court's jurisdiction.

The remaining grounds, already briefed in Defendant, Flumiani and CCB's Motion to Dismiss (Dkt. 21) are equally applicable to Callegari and dispose of every count on the merits. Callegari presents all grounds here so that the pending motions may hopefully be resolved together at the September 23 conference.

## VII. ARGUMENT

### A. Dangelas lacks standing, her claims must be dismissed under Rule 12(b)(1).

The controlling document is Dangelas's own affidavit, sworn July 2, 2026 and filed in support of an application for a preliminary injunction. She swore that "it was agreed that a company in which I own no interest, Angels Company, Inc., would own 100% of Chicago Crystal Ball," and that "[t]he total purchase price was $250,000. This money was paid by Angels Company, Inc. and not by me" (Dkt. 15-5, p. 1). Those two sentences dispose of her individual claims. The first removes her from the promise, as the entity that was to receive 100% of CCB is one in which she swears she holds nothing. The second removes her from the payment.

**I. Dismissal should be with prejudice as leave to amend would be futile.**

Plaintiffs' Response to Flumiani and CCB's Motion to Dismiss (Dkt. 21) requests leave to amend yet again (Dkt. 34). Leave may be denied where amendment would be futile. *Marucci Sports, L.L.C. v. NCAA*, 751 F.3d 368, 378 (5th Cir. 2014). The controlling defects here are legal, not factual, the scope of § 27.01, the Statute of Frauds, the derivative character of the company injury claims, the absence of any fiduciary relationship, the want of an identifiable fund, and the economic loss rule. No new allegation can cure them. The record confirms the point: (1) this is already Plaintiffs' second pleading; (2) their account has shifted on nearly every material fact between the Original Petition and the Amended Complaint, (see Dkt. 21, Sections III.B and III.C for more detail); (3) the exhibits Plaintiffs themselves attached to their response supply none of the missing elements; (4) the Asset Purchase Agreement names neither Plaintiff; and (5) the bank records show transfers from Angels Company's accounts, not any conveyance of ownership to either Plaintiff (Dkts. 34-3, 34-4, 34-6, 34-7). A third pleading built on the same transaction cannot state a claim. Dismissal should be with prejudice.

For Dangelas, futility is inescapable. To plead an individual claim, she must allege an ownership interest in Angels Company or a personal entitlement to the funds. Either she stands on her July 2, 2026 affidavit swearing she owns no interest in Angels Company and did not pay the $250,000 to which no amendment can supply standing. Or she amends to allege the opposite, and the new pleading contradicts a notarized affidavit she filed in this Court to obtain injunctive relief. Plaintiffs have given three sworn accounts of the ownership structure in fifteen days, as the June 17, June 23, and July 2 accounts are all different. Plaintiff has pleaded herself out of Court.

## VIII. CONCLUSION AND PRAYER

Defendant, Cristiano Callegari respectfully requests that the Court dismiss all claims of Plaintiff, Maya Dangelas under Rule 12(b)(1) for lack of standing, dismiss all remaining claims against Callegari with prejudice under Rule 12(b)(6), deny Plaintiffs leave to amend as futile, and grant Callegari all other relief to which he is justly entitled.

Dated: September 1, 2026

Respectfully submitted,

BY: /s/ Paul F. O'Reilly

PAUL F. O'REILLY, ESQ.
N.Y. State Bar No. 4245866
(admitted pro hac vice, Dkt. 24)
75 Broad Street, Suite 2120
New York, NY 10004
Tel: (917) 387-3630
Email: paul@oreilly.esq
Counsel for Defendant, Cristiano Callegari

## CERTIFICATE OF WORD COUNT

Relying on the word count function of the word-processing software used to prepare this Motion, I certify that the portions of this Motion subject to the word limit of Court Procedure 18(c) contain 4,576 words.

/s/ Paul F. O'Reilly

## CERTIFICATE OF CONFERENCE

Pursuant to Court Procedures 17(a) and 17(b), on August 27, 2026, counsel for Defendant, Callegari identified in writing to counsel for Plaintiffs the pleading deficiencies raised in this Motion, offered a telephonic conference, and requested Plaintiffs' written position by August 31, 2026. Plaintiffs' counsel did not respond in writing, and the parties were unable to resolve the issues. The Motion is presumed to be opposed.

/s/ Paul F. O'Reilly

## CERTIFICATE OF SERVICE

I certify that on September 1, 2026, a true and correct copy of the foregoing was served on all counsel of record through the Court's CM/ECF system, including counsel for Plaintiffs, Michael Sydow and Andrew Pidgirsky, Lewis Brisbois Bisgaard & Smith LLP, 24 Greenway Plaza, Suite 1400, Houston, Texas 77046.

/s/ Paul F. O'Reilly